

FORMAL COMPLAINT TO HHS-OIG

TO: Office of Inspector General, U.S. Department of Health and Human Services — Hotline Operations

VIA: tips.oig.hhs.gov 1-800-HHS-TIPS (1-800-447-8477)

DATE OF SUBMISSION: August 7, 2026

SUBJECT: Possible fraud, waste, or abuse in HHS programs. Possible claims or certifications under **Title IV-E** and/or **Medicaid** tied to custody based on medically unsupported "non-accidental trauma" findings; possible serious harm to minors in federally funded foster care; possible False Claims Act violations (31 U.S.C. § 3729). **Castaneda-Sandoval Case, San Bernardino County, CA**

URGENT: minors in substantial danger

I. URGENCY

Four minors, especially **Athena Castaneda** (born September 25, 2021) and **Elleonore Castaneda** (born June 17, 2020), face **substantial danger** of permanent harm or death without continuous specialized care for a serious genetic bone disease (Familial Expansile Osteolysis / **TNFRSF11A** variant): fragile bones, fractures with minimal trauma.

Dr. Robert M. Bernstein, MD, FACE (endocrinologist, Stanford fellowship, 45 years of experience) concluded, to a reasonable degree of medical probability, that Athena and Elleonore's fractures were caused by **congenital abnormality, not abuse**, and that both require **immediate and continuous** care directed by experts in metabolic bone disease (endocrinology) and orthopedics. **Dr. Eduardo Salazar Valenzuela** (medical genetics specialist, Mexican Council of Genetics A.C.) confirmed that the c.858G>T variant in the TNFRSF11A gene could explain the girls' injuries and that ruling out a bone fragility disorder must be a priority. **Dr. Thomas J. Grogan** (diplomate, American Board of Orthopaedic Surgeons) questioned the basis of the abuse diagnosis by documenting that the metaphyseal corner fractures were no longer visible on follow-up and were likely never actual fractures.

To date, the complainant is not certain that the minors are receiving that care. They remain separated from their biological family; their exact whereabouts are unknown. Each day without investigation and protective coordination increases the risk of fractures, deformity, hemorrhage, infection, and death.

This is a tip regarding HHS program integrity and the protection of minors in federally funded systems, not a private custody dispute.

II. COMPLAINANT

Name: César Adrián Sandoval Molina

Nationality: Mexican, with permanent residency in the USA issued by federal authority.

Relationship to Victims: Maternal grandfather of Aostin Aparicio, Eirah Castaneda, Athena Castaneda, and Elleonore Castaneda

International Status: Petitioner, Case 15.151, Inter-American Commission on Human Rights (IACHR, Washington D.C.); *amicus curiae* admitted before the Inter-American Court of Human Rights (San José, Costa Rica)

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The mother, **Claudia Sandoval**, filed in 2026 a complaint before the California Commission on Judicial Performance (CJP) regarding Judge Mapes and a disciplinary complaint before the State Bar of California regarding five attorneys who participated in the case. Those complaints corroborate the same factual core; they do not substitute for federal jurisdiction.

Parallel tip: A complaint has been filed with the **FBI** (possible deprivation of rights under color of law / 18 U.S.C. § 242). Coordination between agencies is requested, not duplication of files.

III. HHS-OIG JURISDICTION

Investigation is requested within the framework of OIG's functions regarding:

- Fraud, waste, abuse, and mismanagement in HHS programs.
- **Medicaid**, claims, medical necessity, patient harm.
- **Title IV-E** (Social Security Act), foster care payments and certifications conditioned on the legality and good faith of case plans and abuse/neglect findings.
- Possible civil **False Claims Act** violations (31 U.S.C. § 3729).
- Coordination with California's **Medicaid Fraud Control Unit (MFCU)** as appropriate.
- Preservation of records from grantees, counties, and providers.

HHS-OIG has historically documented California's failures in the handling of abuse/neglect allegations regarding children eligible for Title IV-E payments.

IV. SUBJECTS / ENTITIES TO BE INVESTIGATED (FOCUS ON FUNDS AND CUSTODY)

1. San Bernardino County, Children & Family Services (and entities billing or certifying Title IV-E or Medicaid for foster care)

- Central actor: removed and maintained custody under the theory of non-accidental trauma (NAT) / abuse.
- Alleged intervention with the genetic laboratory.
- Case management without evidence of implementing the specialized care that Dr. Bernstein declared medically necessary.

2. County Counsel (in official role in the case)

- Presented and maintained before the court a medical opinion from a fellow in training as the operative basis for abuse/NAT (Hanna Tavill, Glenn Moret, as reflected in the record).

3. Providers and laboratory

- **Ambry Genetics:** internal records reflect instructions not to send reports to the parents and to redirect inquiries to the "OP," even though the mother stated she had paid for the studies.

--- Any hospital or clinic that billed **Medicaid** for these minors while the predicate was NAT without a complete metabolic/genetic workup.

4. Steven Alan Mapes (context of judicial determination — not "OIG discipline")

--- Dependency judge whose detention and permanency orders **enabled** the foster care framework and the possible flow of federal funds.

--- Alleged to have had knowledge (fellow witness, Consulate of Mexico, Dr. Bernstein, Ambry) and nonetheless maintained custody without ensuring the vital specialized care.

--- OIG may need the court record to audit the **eligibility and good faith of the predicate** for claims.

5. Religious institution (knowledge only, not a subject of HHS fraud)

--- Mapes is described as a member of the High Council of the Redlands California Stake.

--- The complainant formally notified the First Presidency (USPS certified mail to Salt Lake City) with the documentary package.

--- There was a response from the Area Presidency characterizing Mapes in terms of good ecclesiastical standing and stating that the Church "could not intervene."

--- **OIG is not asked to investigate doctrine, tithing, or the Proclamation on the Family.** This is offered only as evidence of **knowledge** of facts that, if true, include serious child abuse/medical neglect of minors in state custody.

V. FEDERAL CONTEXT, CALIFORNIA AND PROGRAM INTEGRITY

In 2026, the federal government intensified the fight against fraud in health benefits, including the Anti-Fraud Task Force and CMS/HHS actions regarding **Medicaid in California**. In May 2026, the **deferral of approximately \$1.3 billion** in Medicaid reimbursements to California was announced due to fraud concerns and the assertion that the State has not taken fraud seriously enough.

Nexus with this case: this complaint **does not** identify the Castaneda case with that accounting ledger. It does present the **same type of integrity risk**: state custody and possible **Title IV-E / Medicaid** supported by a weak or contested NAT diagnosis, genetic evidence restricted from the family, and documented indifference to serious medical needs of children already under state control — the type of pattern that IV-E audits and MFCUs are designed to detect.

VI. DOCUMENTED FACTS

A. Initial detention (October 20, 2021)

Detention hearing before Judge Mapes; County Counsel; minors' counsel. The court made findings of danger and removal. The record shows the warning to the mother that it was possible she would not receive services and that parental rights would be terminated. This alone does not prove a federal crime; it does show the framework of state power from day one and the gravity of what was later constructed on the theory of abuse.

B. Medical witness in training, Komal Aziz (date of transcript: October 20, 2022)

Under oath, Aziz did not present herself as board-certified in Child Abuse Pediatrics at the time of the operative opinion. She stated she was in fellowship/training (second-year fellow), working under supervision, and that her initial evaluation of Athena was with **two months** in the program.

The defense objected to foundation (Evidence Code § 720): insufficiency due to still being in training. The court did not exclude the testimony. County Counsel maintained the ability to opine in a manner that, according to the complainant, contradicted the very limit of "under supervision."

Aziz opined in the line of abusive head trauma / physical abuse and characterized certain findings (e.g., metaphyseal lesions) as highly specific to inflicted trauma.

Subsequent fact of forensic credibility: the certification in Child Abuse Pediatrics appears with date **April 17, 2026**, years after the opinion used in the case. That does not retroactively "nullify" an MD degree; it demonstrates that when the State used her opinion as the pillar of NAT, **she was not the certified subspecialist** that the system presented in practice.

OIG point: the "abuse/NAT" predicate that supports reimbursable foster care was based on the opinion of a non-certified subspecialist, in supervised training.

C. Suppression / restriction of genetic evidence, Ambry Genetics (2022)

Internal record (July 5, 2022), Kelly D. Le: *"PLEASE DO NOT SEND ANY REPORTS FOR Athena Castaneda OR Elleonore Castaneda TO Nick Castaneda OR Claudia Sandoval. IF THEY INQUIRE ABOUT RESULTS, PLEASE TELL THEM TO CALL THE OP."*

On September 14, 2022, it was documented that the mother called and stated she had paid for the results; they were not delivered to her at that time. The internal record documents: *"She stated she paid for the results."*

The complainant alleges that CPS county personnel instructed not to complete full sequencing / not to order secondary findings / to block parental access. The names, dates, and times are in the laboratory records obtained through litigation.

OIG point: concealing or restricting material genetic evidence **contaminates** the determination of whether foster care is based on abuse vs. disease, and therefore the **integrity of certifications and claims**.

D. Three medical specialists challenge NAT as certainty

--- **Dr. Robert M. Bernstein (October 28, 2023):** fractures more likely due to congenital disease than to abuse; need for specialists; critical diagnoses (e.g., Von Willebrand, thrombocytosis) absent or not adequately reflected in records under custody.

--- **Dr. Eduardo Salazar Valenzuela (2023):** TNFRSF11A variant can explain lesions; priority to rule out bone fragility disorder.

--- **Dr. Thomas J. Grogan (May 31, 2024):** questions the nature/permanence of the "corner fractures" as they were used for abuse. Documents that Athena's metaphyseal corner fractures "were no longer visible" on follow-up and were likely "not fractures, but some other normal bony variant"; without callus formation; etiology needs "more scrutiny".

E. Consulate of Mexico (2023), notification of risk of death

Letters **SBE01386** (July 11, 2023) and **SBE01680** (August 21, 2023): multigenerational congenital bone disease; health seriously compromised; **risk of death** without adequate care; Mexican federal court order / reunification. Received and stamped by the court; the complainant alleges inaction by Mapes and the county apparatus.

F. Permanency / adoption without guaranteed specialized care

With notification of genetics, consulate, and Bernstein, the minors were maintained under state power and progressed to permanency/adoption **without evidence** that the standard of care Bernstein declared medically necessary was implemented. OIG is not asked to invalidate an adoption for religious reasons; it is asked to investigate whether state custody was sustained with deliberate indifference to serious medical needs and/or with fraudulent predicate or concealed evidence.

G. Church, notification and response (knowledge only)

Formal notification to the First Presidency / West Area (with copies to OGC, Auditing, Abuse Help Line, stake/bishop), with exhibits from Ambry, Bernstein, consulates, etc. USPS delivery to 47 East South Temple, Salt Lake City, UT 84150.

Response (previous) from the Area Presidency (May 22, 2024): good standing of Mapes + "no intervention". This is offered only to prove **knowledge** of facts that, if true, include serious child abuse/medical neglect of minors in state custody. OIG is not asked to investigate doctrine.

H. Parallel proceedings (2026)

--- CJP Complaint (mother), Mapes: prejudgment, conflict/appearance Tavill–Mapes, indifference to risk of death.

--- State Bar Complaint, Tavill, Moret, Borrero, Koenig: competence, candor, WIC 317, foundation of Aziz.

VII. LEGAL THEORIES FOR OIG (TIP LANGUAGE), WHAT TO INVESTIGATE

Title IV-E, Were there foster care payments or certifications for these children? Were the abuse/NAT finding and the case plan *knowingly* or *recklessly* defective after the fellow's testimony, Ambry's restriction, and the Bernstein and Consulate opinions?

Medicaid, Were the minors enrolled? Were claims submitted for services? Was medically necessary specialized care omitted? Was there irregular genetic laboratory billing?

31 U.S.C. § 3729 Indications that federal claims or certifications may have been based on NAT knowing (or with reckless disregard) that the basis was a supervised fellow + genetics restricted from parents + subsequent opinions of congenital disease.

Patient harm / neglect in federally funded system, Indifference to serious medical needs after documented notification.

California MFCU, *Referral* if there is Medicaid fraud or beneficiary abuse.

VIII. EXHIBITS

1. Ambry Genetics, internal records (instructions not to deliver results, not to perform full sequencing)
2. Transcript, testimony of Komal Aziz (fellow / supervision / § 720 objection)
3. Expert report of Dr. Robert M. Bernstein, MD, FACE
4. Certification/opinion of Dr. Eduardo Salazar Valenzuela
5. Communications from the Consulate of Mexico (SBE01386 and SBE01680)

6. Report of Dr. Thomas J. Grogan, M.D.
7. Formal notification to the First Presidency
8. Response letter from the Area Presidency (May 22, 2024)
9. Complaint before the California Commission on Judicial Performance (CJP)
10. Disciplinary complaint before the State Bar of California
11. ABP Certification of Komal Aziz (April 17, 2026)

IX. PETITION

OIG is requested to:

- 1. Prioritize** due to the ongoing risk of death or permanent harm to the minors.
- 2. Open an investigation** into the claims for federal Title IV-E and Medicaid funds made by San Bernardino County in the Castaneda-Sandoval case, to determine whether such claims were based on a medically unsustainable abuse diagnosis.
- 3. Trace who certified what and when** (County, State, providers) in relation to the maintenance of the minors in custody.
- 4. Investigate the suppression of genetic evidence** by Ambry Genetics following CPS instructions, and whether this suppression constituted an obstruction to the correct determination of eligibility for federal funds.
- 5. Evaluate whether claims continued after** the notification from the Consulate of Mexico (July–August 2023) and Dr. Bernstein's opinion (October 2023).
- 6. Coordinate with the FBI**, which has already received a formal complaint on this case, for a joint investigation of criminal and civil aspects.
- 7. Interview the medical experts** (Dr. Bernstein, Dr. Salazar, Dr. Grogan) and case witnesses.
- 8. Preserve all evidence** related to federal fund claims, including Ambry Genetics records, CPS files, court records, and County Counsel communications.
- 9. Regarding notified ecclesiastical leaders:** evaluate whether the facts warrant referral for failure of mandated reporting or concealment of child abuse as a matter of child protection, without turning the case into religious litigation.
- 10 Inform the complainant** of the tracking number and, to the extent permitted by law, the status of the investigation.

X. DECLARATION

I declare under penalty of perjury under the laws of the United States that the foregoing facts are true according to my personal knowledge, and that the remainder is stated according to information and belief

based on the attached documents, which are true copies of those in my possession. The quoted citations from the transcript and from Ambry are literal according to those documents. Title IV-E/Medicaid amounts and claim numbers are requested to be **investigated** because the complainant does not control the County's or State's payment systems.



César Adrián Sandoval Molina

Petitioner, Case 15.151, IACHR (Washington D.C.)

Amicus curiae, IACtHR (San José, Costa Rica)

Date: August 7, 2026